III

Litigants seeking relief under Rule 60(b)(4) must comply with Rule 60(c)(1) and file a motion within a reasonable time. Coney Island does not contend that it complied with this requirement. Therefore, we need not expound on whether Coney Island's timing was reasonable. The judgment of the United States Court of Appeals for the Sixth Circuit is affirmed.

It is so ordered.

JUSTICE SOTOMAYOR, concurring in the judgment.

The Court today rightly holds that a Rule 60(b)(4) motion to set aside a default judgment that is void for lack of personal jurisdiction must be made "within a reasonable time." Fed. Rule Civ. Proc. 60(c)(1). Rule 60's text and structure require that conclusion, as the majority explains.

I concur in the judgment because the majority unnecessarily opines on the potential validity of a constitutional challenge to the "reasonable time" limit under the Due Process Clause. *Ante*, at 159. Coney Island did not make this argument below and the Sixth Circuit did not pass upon it. See *In re Vista-Pro Automotive, LLC*, 109 F. 4th 438, 443 (2024) ("Coney Island does not mount a constitutional attack on Rule 60"). In this Court, Coney Island expressly disclaimed any due process argument. See Brief for Petitioner 22 ("To be clear, Coney Island does not contend that Rule 60 or Rule 60(c)(1) [is] unconstitutional"). This Court does "not generally entertain arguments that were not raised below and are not advanced in this Court by any party." *Burwell* v. *Hobby Lobby Stores, Inc.*, 573 U. S. 682, 721 (2014). There is no reason to depart from that practice absent unusual circumstances, which certainly are not present here.

Page Proof Pending Publication